

Hindustan Copper Limited
Corporate Office

No. R&P/8.2

22.06.2017

OFFICE ORDER

Sub: Amendment to Hindustan Copper Limited (Conduct, Discipline & Appeal) Rules 1979.

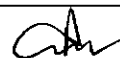
In accordance with the approval of the Board of Directors in the 371st meeting held on 17th May, 2017, the existing Clauses of Rules 20.1, 20.4, 25.3, 25.4, 25.6, 25.16, 25.17 and 25.20 have been amended / enlarged and Clauses (aa), (ab), (ac) & (ad) under Rule 5.0, Sub-Clauses (c), (d) & (e) under Rule 20.1, Clauses 20.5, 20.6 & 20.7 under Rule 20.0, Clause 21.3 under Rule 21.0, Clauses 22.3 & 22.4 under Rules 22.0, Clause 23.1 under Rule 23.0 and Clause 26.5 under Rule 26.0 have been added in Hindustan Copper Limited (Conduct, Discipline and Appeal) Rules – 1979 as detailed below.

2. Amendment to Existing Provisions are as under.

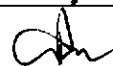
S N	Existing Provision	Amended / Added / Enlarged Provision
A	<u>Part II - Conduct</u> 5.0 Misconduct 5.1 ... (aa) NIL (ab) NIL (ac) NIL (ad) NIL	<u>Part II - Conduct</u> 5.0 Misconduct 5.1 ... (aa) "Obtaining donations / advertisement / sponsorship etc. by the association / NGOs formed by either employees or their spouse / family members etc. from the contractors, vendors, customers or other persons having commercial relationship / official dealings with the CPSE will be treated as misconduct". (ab) "Loss of files / records / documents or any other material / property of official nature." (ac) "Misuse of official powers / position for personal gains." (ad) "Refusal / deliberate failure to carry out written reasonable orders of superior authorities including Circulars / Office Orders etc."
B	<u>PART III - DISCIPLINE</u> 20.0 Suspension 20.1 The appointing authority or any authority to which it is subordinate or the disciplinary authority or any authority empowered in his behalf by the Board by general or special order may place an employee under suspension:	<u>PART III - DISCIPLINE</u> 20.0 Suspension 20.1 The appointing authority or any authority to which it is subordinate or the disciplinary authority or any authority empowered in his behalf by the Board by general or special order may place an employee under suspension by a specific order to this effect made in writing by the said Competent Authority :



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	(c) NIL (d) NIL (e) NIL 20.4 An order of suspension made or deemed to have been made under these rules may, at any time, be revoked by the authority which made or deemed to have made the orders or by any authority to which that authority is subordinate. 20.5 NIL	(c) "where an employee is arrested in connection with the registration of the police case under Section 304-B of the IPC for his involvement in a case of dowry death, immediately, irrespective of the period of his detention. If he is not arrested, he shall be placed under suspension immediately on submission of a police report under section 173 (2) of the Code of Criminal Procedure, 1973 to the Magistrate, if the report, prima-facie, indicates that the offence has been committed by the employee; or (d) where an employee detained in custody, whether on a criminal charge or otherwise, for a period exceeding 48 hours, shall be deemed to have been placed under suspension with effect from the date of detention. An employee who is detained in custody under any law providing for preventive detention or as a result of proceedings for his arrest for debt shall fall in this category; or (e) where an employee is convicted of an offence and sentenced to a term of imprisonment exceeding 48 hours; and is not forthwith dismissed, removed or compulsorily retired consequent upon such convictions; shall be deemed to have been placed under suspension with effect from the date of conviction. For this purpose, the period of 48 hours will be computed from the commencement of imprisonment after the conviction and intermittent period of imprisonment, if any, shall be taken into account." 20.4 An order of suspension made or deemed to have been made under these rules may, at any time, be modified or revoked by the authority which made or deemed to have made the orders or by any authority to which that authority is subordinate. 20.5 During Suspension a) "An Officer under suspension cannot leave the station without prior permission. b) Headquarters of the suspended employee shall be the station of posting immediately before the order of suspension is issued unless otherwise specified in the order of suspension. c) The Competent Authority may consider to change the Headquarters of an employee during suspension if it is in the public / administrative interest. d) When an employee under suspension requests for a change of Headquarters for any reason whatsoever, the Competent Authority may consider the request and upon being satisfied that such a course shall not lead to



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	20.6 NIL 20.7 NIL	incurring of any additional financial burden by the Company on any account including and not limited to expenditure towards travelling allowances, etc., or other complications like creating difficulty in investigation or departmental proceeding, etc., may take appropriate decision to be communicated in writing with reasons thereof." 20.6 "A duty has also been cast on the employee, who may be arrested or convicted for any reasons, to intimate promptly the fact of his arrest / conviction and circumstances connected therewith to his official superior even though he might have been released on bail subsequently. Failure on the part of employee to do so shall be regarded as suppression of material information and will render him liable to disciplinary action on this ground alone, apart from the action that may be called for on the outcome of the police case against him; or imposition of a penalty that may be warranted on the basis of the offence on which his conviction was based. 20.7 Grant of Leave is not permitted to an employee under suspension."
C	21.0 Subsistence Allowance 21.3 NIL	21.0 Subsistence Allowance 21.3 "Non-employment certificate shall be required to be submitted at the end of every month for release of subsistence allowance."
D	<u>PART III - DISCIPLINE</u> 22.0 Treatment of the period of suspension 22.3 NIL 22.4 NIL	<u>PART III - DISCIPLINE</u> 22.0 Treatment of the period of suspension 22.3 "Where an employee is placed under suspension, the order of suspension should not extend beyond three months, if within this period the charge-sheet is not served to the charged officer. As such, it should be ensured that the charge sheet is issued before expiry of 90 days from the date of suspension. As the suspension will lapse in case this time line is not adhered to. It should also be ensured that disciplinary proceedings are initiated as far as practicable in cases where an investigating agency is seized of the matter or criminal proceedings have been launched. 22.4 An employee originally not under suspension is terminated / removed from the service but subsequently the same is set aside on appeal etc. pending further enquires, the Appellate Authority / Competent Authority may, in such cases place the employee under suspension even if an employee was not suspended previously."
E	23.0 Penalties 23.1 ... (e) NIL	23.0 Penalties 23.1 ... (e) "Reduction to a lower stage in the time scale of pay for a period not exceeding three years, without cumulative effect



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		and not adversely affecting his terminal benefits." Existing Clauses 23.1 (e), 23.1 (f), and 23.1 (g) dealing with Major Penalties are renumbered as 23.1 (f), 23.1 (g) and 23.1 (h).
F	<u>Part IV - Discipline and Appeal-Procedure</u> 25.0 Procedure for imposing major penalties 25.3 Explanation: It will not be necessary to show the documents listed with the charge sheet or any other document to the employee at this stage. 25.4 On receipt of the written statement of the employee, or if no such statement is received within the time specified, an enquiry may be held by the Disciplinary Authority itself, or by any other public servant / retired Govt. servant / retired officer of Public Sector Enterprises or a committee appointed as an Inquiring Authority under sub-rule 25.2. Provided that it may not be necessary to hold an enquiry in respect of the charges admitted by the employee in his written statement. The Disciplinary Authority shall, however record its findings on each such charge after taking such evidence as it may think fit. 25.6 The employee may take assistance of any other public servant / retired Govt. servant / retired officer of Public Sector Enterprises and may not engage a legal practitioner for the purpose unless the Presenting Officer appointed by the Disciplinary Authority is a legal practitioner or unless the Disciplinary Authority, having	<u>Part IV - Discipline and Appeal-Procedure</u> 25.0 Procedure for imposing major penalties 25.3 ... Explanation: Charged Officer shall be provided with the documents and statement(s), if any, of witnesses, by which the articles of charges are proposed to be sustained. 25.4 "On receipt of the Written Statement of the Charged Officer, Disciplinary Authority may review and modify the articles of charge, or drop some or all of the charges, after the receipt and examination of the written statement of defence. It is not bound to hold an enquiry to inquire in to such charges which was admitted by Charged Officer / or which was not admitted by Charged Officer but about which the Disciplinary Authority is satisfied that these do not require to be proceeded with further with proper reasoning(s) / or for charges dropped by Disciplinary Authority. However, if no such Written Statement of defence is received within the time specified, enquiry may be held by Disciplinary Authority itself, or by as stated under sub-rule 25.2. Note: Before the Disciplinary Authority exercises the aforesaid power, it may consult the CBI in cases arising out of the investigation conducted by CBI and Commission where disciplinary proceedings were initiated on commission advice." 25.6 The employee may take the assistance of any other public servant / retired Govt. servant / retired officer of Public Sector Enterprises and may not engage a legal practitioner for the purpose unless the Presenting Officer appointed by the Disciplinary Authority, is a legal practitioner or unless the Disciplinary Authority, having regard to the circumstances of the case, so permits. Such person (i.e., the Defence Assistant) shall not be associated with more than 3 (three) enquiry proceedings including the present one at any instant.



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	regard to the circumstances of the cases, so permits. 25.16 After the completion of the production of the evidence, the employee and the Presenting Officer may file written briefs of their respective cases within 15 days of the date of completion of the production of evidence. 25.17 If the employee does not submit the written statement of defense referred to in sub-rule 25.3 on or before the date specified for the purpose or does not appear in person, or through the assisting officer or otherwise fails or refuses to comply with any of the provisions of these rules, the inquiring Authority may hold the enquiry ex-parte. 25.20 ... (a) the report of the inquiry prepared by it under sub-rule 25.14 above;	25.16 After the completion of the production of the evidence, the Presenting Officer may file written brief of case within 15 days of the date of completion of the production of evidence to Inquiring Authority in duplicate of which one copy shall be made available to the Charged Officer to facilitate his written brief and charged officer may file his written brief within 15 days from the date of receipt of Presenting Officers written brief. 25.17 If the employee does not submit the written statement of defence referred to in sub-rule 25.3 on or before the date specified for the purpose or does not appear in person, or through the assisting officer or otherwise fails or refuses to comply with any of the provisions of these rules, the Inquiring Authority may hold the enquiry ex-parte. A copy of the proceedings of ex-parte enquiry shall be shared with the Charged Officer and after an approval of Disciplinary Authority, the Charged Officer may be allowed to rejoin the enquiry at any stage, if he so, desires. 25.20 ... (a) the report of the inquiry prepared by it under sub-rule 25.19 above; ...
G	26.0 Action on the Enquiry Report 26.2 The Disciplinary Authority shall, if it disagrees with the findings of the Inquiring Authority on any articles of charge, record its reasons for such disagreement and record its own findings on such charge, if the evidence on record is sufficient for the purpose. 26.5 NIL	26.0 Action on the Enquiry Report 26.2 The Disciplinary Authority shall, if it disagrees with the findings of the Inquiring Authority on any articles of charge, record its reasons for such disagreement and record its own findings on such charge, if the evidence on record is sufficient for the purpose. The Disciplinary Authority needs to provide a copy of the Enquiry Report to the Charged Officer along with his own observations thereon, if any, in case any of the article of the charges(s) are found to be substantiated, to allow the Charged Officer to represent on the findings within a specified time. 26.5 "Whenever the Disciplinary proceedings are initiated arising out of the investigations conducted by CBI / on Commission's advice then wherever Disciplinary Authority is of the opinion that the CBI / Commission's advice cannot be adhered to (i.e., the employee concerned needs to be exonerated / minor penalty is to be imposed in a Major Penalty proceedings), the tentative views of the Disciplinary Authority need to be referred to the Commission for Second Stage Advice."



4. The above amendments / enlargements and additions of new provisions shall be without retrospective effect and shall be without prejudice to the departmental proceedings presently in progress or undertaken in the past.

5. The above amendments / enlargements to existing provisions and incorporation of new provisions to Hindustan Copper Limited (Conduct, Discipline & Appeal) Rules 1979 shall come in to force with effect from 17th May, 2017.

This issues with the approval of Competent Authority.



(A S Verma)

Deputy General Manager (HR)

Distribution:

1. CMD
2. D(P) / D(F) / D(M) / D(Ops.)
3. CVO
4. All Unit Head
5. All HoDs at CO
6. All RMs
7. AGM(S) / CO – with the request to upload the document in HCL website under 'Employee Section'.
8. Policy File